country.[2] Extermination is the word used by Mr Gill. The authority for the militarist enterprise came from elsewhere.

At the international level ‘the war on terrorism’ is led by two main dramatis personae: Messrs Blair and Bush. Blair is seen as the European face of the war, who claims to be as much a victim of terror as the United States itself, if not more. However, Britain’s Constitution, like those of the rest of Europe, does not permit the death penalty, which is just the opposite of the way Bush would like it. The United States itself is vertically and horizontally divided over the issue of capital punishment, with a dozen states banning it. That federal law endorses the death penalty must be a source of strength for the right-wing administration.

And yet the only person so far convicted in the United States of involvement in the 9/11 attack— Zacarias Moussaoui—was spared capital punishment by the federal jury. We can take this as a rebuke to the face of the Bush administration, which tried every trick in the trade to send at least one surviving suspect of 9/ 11 to the gallows.

But Moussaoui would not be so lucky in India. Going by the experience of Afzal, he would have long ago made a detailed confession before a gaggle of specially invited TV journalists, who would have scooped their story in the lock-up where crime branch sleuths would serve them tea and biscuits.[3] If the cameras focussed on his hands they would see the handcuffs tightly secure around the wrists as the confession flowed. Moussaoui’s testimony before Indian television cameras would be a repetition of what the police would have coerced from him, valid evidence under the anti-terror laws of the time. That the Supreme Court threw out Afzal’s confession is a small victory for justice. The high court too castigated Afzal’s trial by the media but that was too little and too late.

This is not to suggest that Mohammed Afzal Guru was blameless in the making of his own tragedy. The argument here is to hear him out fairly—which clearly didn’t happen in the trial court—and then decide. Also, death by hanging is an abhorrent punishment laid down by India’s colonial rulers. As we know, one of the charges against Afzal was that he had conspired to attack the Indian Parliament on 13 December 2001. In legal parlance he had sought to wage war against the State. The same law was used against Gandhi and still continues to invite capital punishment.

It is odd that India’s legendary democracy has refused to unlearn the lessons of colonialism whereas the erstwhile conquerors have cleansed